



March 21st 2016 Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=kiz2vVCMzUc
Publication Date	2016-03-21T19:36:41Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Summary

Meeting Date: March 21, 2016

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order by the presiding officer [00:00:12](#).
- **Attendance:**
 - **Present:** Mr. Caine, Ms. Reagan, Mr. Henry (Board Members); Marta Moody (Plan Commission); Robert Jesse (Highway Superintendent); Jason Rogers (Emergency Management Director); Brad King (Muncie Redevelopment Commission).
 - **Absent:** Not explicitly stated.
 - **Presiding Officer:** Identified via proceedings.

3. Preliminary & Procedural Business

- **Ceremonial Openings:**
 - The meeting opened with the Pledge of Allegiance led by Mr. Rate [00:00:30](#).
 - A moment of silence was observed for partners in Howard County who lost a sheriff's deputy the previous day [00:00:18](#).

- **Approval of Minutes:**
 - Motion made and approved by roll call to adopt the minutes from the March 7, 2016 meeting and the March 15, 2016 executive session meeting **00:01:21**.
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4. Substantive Business & Board Action

- **00:01:31 Resolution 2016-011: ECI Regional Planning District Contribution & EDA Grant Application**
 - **Sponsor / Presenter:** Pam
 - **Deliberation Summary:** Resolution pledges annual contribution to the ECI Regional Planning District and authorizes application for EDA funds to assist with asset planning.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- **00:03:15 Board Appointment: Cardinal Greenway Board**
 - **Sponsor / Presenter:** Marta Moody
 - **Deliberation Summary:** Appointed Kyle Johnson to fill a vacancy on the Cardinal Greenway board left by Jason DeNettie, who became the sanitary district's appointee.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- **00:04:41 Board Appointment: Property Tax Appeals Board**
 - **Sponsor / Presenter:** Board / Commissioners
 - **Deliberation Summary:** Appointed Dave Simmons (who is retired) to the Property Tax Appeals Board.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- **00:05:28 Highway Materials Bids (Tabled Business)**
 - **Sponsor / Presenter:** Robert Jesse, County Highway Superintendent
 - **Deliberation Summary:** Consideration of pricing and contracts for Delaware County Highway department materials submitted at the previous meeting.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote to accept all bids for highway materials.
- **00:06:46 Resolution 2016-012 (Tax Sale Certificate / New Kingdom): Removal from Table**
 - **Sponsor / Presenter:** Commissioners / Staff
 - **Deliberation Summary:** Motion to remove Resolution 2016-012 (assigning tax sale certificates to a nonprofit corporation for New Kingdom) from the table.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Passed 3-0 by roll call vote to remove from the table.
(Note: Later in the meeting at 00:30:06, this item/resolution was formally pulled/withdrawn by agreement with the pastor).
- **00:10:34 Delaware County Property Changes: Tillable Acres & Sheriff's Training Facility**
 - **Sponsor / Presenter:** Sheriff's Office / John
 - **Deliberation Summary:** Notifying the tenant farmer that a portion of county-owned tillable acres near the highway department (approximately 6.69 acres west of the woods and 1.05 acres in the south part, totaling roughly 8<U+2013>9 acres) will be withdrawn from the agricultural lease to be used as a training facility buffer/ground for the Sheriff<U+2019>s Office. GIS surveying and stakes are already completed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote to proceed with changes to tillable acres.
- **00:13:28 Letter of Intent: Property Exchange with Muncie Sanitary District**
 - **Sponsor / Presenter:** Representative / F.C. Tucker
 - **Deliberation Summary:** Proposed letter of intent for an exchange with the Muncie Sanitary District: exchanging the old Jolliff parking lot (approx. 20 spaces) for a 42-space parking lot at 214 E. Washington Street. The sanitary district plans to use the lot as a staging area for a future project (riverfront/Riverwalk area). Commissioners expressed a desire to review the document further.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote to table the letter of intent until the next meeting.
- **00:16:18 Interlocal Agreement (County & City of Muncie): Bridge No. 516**
 - **Sponsor / Presenter:** Staff / Engineering
 - **Deliberation Summary:** Grants the county access to city-owned land to perform the replacement of Bridge No. 516 and any future inspection/maintenance activities. Similar structure to past bridge projects like Jackson Street over the White River.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- **00:17:43 Ordinance 2016-005: Comprehensive Plan Text Amendment (Microbreweries/Microdistilleries)**
 - **Sponsor / Presenter:** Marta Moody, Plan Commission
 - **Deliberation Summary:** Text amendment to the county zoning ordinance (matching a similar city ordinance) to specifically define microbreweries and microdistilleries based on annual gallon production and add them as permitted uses in central business and variety business zones.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Originally brought for introduction, amended on the floor to proceed directly to adoption. Passed 3-0 by roll call vote.

- **00:20:35 Ordinance 2016-006: State Board of Accounts Uniform Internal Control Policy / Material Loss Reporting**
 - **Sponsor / Presenter:** Staff / Commissioners
 - **Deliberation Summary:** Establishes a zero-tolerance reporting policy and thresholds for material cash/asset losses to the State Board of Accounts (e.g., single cash loss of \$1,000+, recurrent cash loss of \$100/month average, asset loss of \$5,000+, or liability creation of \$1,000/month average). Brought for introduction.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote for introduction. *(Note: Later pulled/tabled at 00:30:06 alongside the related resolution).*
- **00:22:26 Resolution 2016-012: Tax Sale Certificate Public Hearing Setting**
 - **Sponsor / Presenter:** Staff
 - **Deliberation Summary:** Identifies tax sale parcels and sets a public hearing for April 18 at 9:00 AM regarding assigning tax sale certificates to a nonprofit corporation 00:22:40.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- **00:23:20 Resolution 2016-013: Disposition of Vacant Parcels Not Sold at Tax Sale**
 - **Sponsor / Presenter:** Staff
 - **Deliberation Summary:** Second step offering unsold tax sale parcels to adjacent property owners, pending a drawing for two contested parcels: (1) 916 Less Memorial Drive (drawing between applicants), and (2) 1215 South Mill Road / adjacent South Mill Heart Drive (drawing between Karen Fowler and another applicant) [00:23:59, 00:24:52, 00:25:31].
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote approving the resolution and listed adjacent property owners, pending the drawings.
- **00:25:54 Resolution 2016-014: Tax Sale Certificate Assignment to Muncie Redevelopment Commission**
 - **Sponsor / Presenter:** Brad King, Muncie Redevelopment Commission
 - **Deliberation Summary:** Assigns tax sale certificates to the city for potential infill construction (two parcels) and a community garden program managed by the neighborhood investment committee 00:26:22.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- **00:26:59 Resolution 2016-015: Surplus Vehicle Transfer to Monroe Township (Calan Volunteer Fire Dept)**
 - **Sponsor / Presenter:** Jason Rogers, Emergency Management Director / Chief Greg Hudson (Calan VFD)
 - **Deliberation Summary:** Transfers a surplus 2004 former hazmat truck (approx. 100,000 miles) to Monroe Township / Calan Volunteer Fire Department. The

- department plans to install a skid unit, saving the township substantial costs compared to purchasing a new \$60,000<U+2013>\$70,000 grass rig.
 - **Item-Specific Public Input:** Chief Greg Hudson spoke regarding cost savings and repurposing the truck [00:27:52](#).
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.
- [00:35:30](#) **SR I Tax Sale / Commissioner Certificate Sale Addendum**
 - **Sponsor / Presenter:** Staff
 - **Deliberation Summary:** Discussion regarding signing an addendum for unsold properties from the fall sale (Commissioner Certificate sale), setting the minimum bid requirement at 10% [00:36:24](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote to set the minimum bid at 10%.
- [00:36:55](#) **Precinct Boundary Change: Yorktown Schools / New Life Church**
 - **Sponsor / Presenter:** Mr. Statham, Republican Party Chairman / Mike King (Yorktown Schools)
 - **Deliberation Summary:** Modifies a precinct polling place to alleviate severe traffic congestion at the Yorktown Middle/Elementary schools. Moves voters from Precinct 95 (Yorktown Middle School) to Precinct 87 (New Life Presbyterian Church), which cuts school traffic by about one-third [00:37:19](#).
 - **Item-Specific Public Input:** Stan Statham presented the proposal [00:37:18](#).
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote to move the precinct to New Life Church.
- [00:38:39](#) **Payment of Claims**
 - **Sponsor / Presenter:** County Staff
 - **Deliberation Summary:** Review and approval of claims totaling \$1,106,450.71 [00:38:46](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Passed 3-0 by roll call vote.

5. Open Public Comment / Citizen Forum

- [00:39:17](#) **John Delbert** (100 North Road / Washington Township / Gaston area):
 - Addressed the board regarding severe county road degradation (potholes, narrow 4-foot paved strips, broken curbs/sidewalks) caused by heavy semi-truck traffic diverting onto county roads (such as 500 West and roads near Gaston) during state highway/interstate construction detours and GPS routing.
 - Complained about long response times for road repairs and contrasted county highway funding with city equipment purchases.

- County Highway Superintendent Robert Jesse and commissioners responded that neither the state nor county authorized semis to use those local roads, noting that GPS routing exacerbates the problem and that state funding has been received to pave damaged areas later in the year.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Collective Bargaining Extension:** 00:30:58 Approved a motion (3-0 roll call) to extend the collective bargaining agreement between the county and the Teamsters (Highway Department) to April 30, 2016, to finalize ongoing negotiations.
 - **Healthy Community Alliance Partnership:** 00:31:56 Marta Moody presented information regarding the Healthy Community Alliance (formed by the hospital's foundation, focusing on nutrition, physical activity/bicycles, and tobacco reduction). Approved a motion (3-0 roll call) for Delaware County to become an official partner.
 - **Weights & Measures:** Monthly report presented 00:38:37.
- **Adjournment:** The meeting concluded following public comments and claims approval 00:47:42.

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